

<i>Policy Title:</i>		<i>Policy Number:</i>
 Category: Human Resources Policy applicable for: Classified and Unclassified Employees	Sick Leave (Time)	21.01
	Effective Date: 02/14/2017 07/01/2015 Prior Effective Date: 05/2002	Policy Owner: Sr. VP for Administration and Finance Responsible Office(s): Human Resources Compensation

Background

This policy applies to employees who are not covered by a collective bargaining agreement or for whom the agreement contains no provision regarding this subject.

The University of Cincinnati provides paid sick leave (time) for its full-time and part-time employees. Sick leave (time) may be accrued and used under certain conditions.

Policy

Definitions

1. Immediate family: grandparents, brother, sister, brother-in-law, sister-in-law, daughter-in-law, son-in-law, father, mother, grandparent-in-law, mother-in-law, father-in-law, spouse, domestic partner, child, grandchild, legal guardian or person who stands in place of a parent (in loco parentis).

Accrual

2. Regular unclassified full-time exempt employees accrue 1.25 days (10 hours) of sick leave (time) per month for each month in active pay status.
3. Regular part-time exempt employees accrue sick leave (time) on a pro-rata basis based on their full-time equivalent (FTE) level.
4. Regular classified or unclassified non-exempt employees accrue sick leave (time) at the rate of 4.6 hours per 80 hours in active pay status.
5. Employees who transfer from employment with the state of Ohio or one of its political subdivisions will be credited with the unused balance of accumulated sick leave (time), upon verification from the issuing unit. Transferred sick leave (time) balances will be added, if appropriate, to employees' automated balances through an adjustment made by the Human Resources Department and the documentation will be attached to the master file. The employee is responsible for having the previous employer notify the Human Resources Department of the available balance. The notification must be made on the employer's letterhead.

6. Previously accumulated sick leave (time) of employees who have separated from state of Ohio service will be credited to the employee upon re-employment, provided such re-employment takes place within 10 years of the most recent separation date.
7. Unused sick leave (time) may accrue without limitation.

Use of Accrued Sick Leave (Time)

8. Use of accrued sick leave (time) is subject to the approval of the employee's supervisor/manager/director, unless the employee is using the sick leave (time) for a certified qualifying condition under the Family and Medical Leave Act (FMLA), in which case the sick leave (time) will be approved.
9. Accrued sick leave (time) may be used for the following reasons:
 - a) Illness, injury or pregnancy-related condition of the employee;
 - b) Examination, including medical, psychological, dental or optical examination of a member of the employee's immediate family by a licensed health care professional where the employee's presence is reasonably necessary;
 - c) Examination of the employee, including medical, psychological, dental or optical examination, by a licensed health care professional;
 - d) Illness, injury, or pregnancy-related condition of a member of the employee's immediate family where the employee's presence is reasonably necessary for the health and welfare of the employee or affected family member; and
 - e) Exposure of an employee to a contagious disease which could be communicated to and jeopardize the health of others.
10. Paid sick leave (time) will be concurrently designated as FMLA time if appropriate and applicable.
11. An employee who becomes ill or injured on duty must, if reasonably possible, obtain permission from his or her administrative authority before leaving the workplace.
12. University contributions toward benefits will continue while an employee is receiving paid sick leave (time) pursuant to this policy.
13. In the event an employee's absence is 15 consecutive calendar days or more, he or she will be placed on the appropriate leave of absence. Medical Leave of Absence With Pay (Employee) is addressed in Human Resources Policy 21-15; Leaves of Absence for Family Member Medical Care Reasons are addressed in Human Resources Policy 21-16; and Medical and Disability Leaves of Absence Without Pay are addressed in Human Resources Policy 21-04.
14. If an employee uses accrued sick leave (time) for a period exceeding his or her accrued sick leave (time) balance, he or she may be placed on the appropriate leave of absence without pay. To remain in pay status, the employee may elect to utilize

any or all accrued vacation and/or compensatory time. Such election by the employee shall be irrevocable and is subject to the approval of the supervisor/manager/director. All accrued sick leave (time) must be exhausted prior to electing to utilize any or all accrued vacation and/or compensatory time.

Dually compensated College of Medicine employees enrolled in a UCP short term disability plan are not required to exhaust UC vacation time prior to being eligible for a Medical Leave of Absence without Pay. These employees may, after exhausting UC sick time, gain access to UC vacation pay after the UCP short term disability benefit is exhausted.

Procedure

Notification

15. Employees unable to report to work must notify their administrative authority no later than ½ hour after the designated starting time for each day of absence; however, where the employees' duties must be continuously performed (an operation which operates 24 hours a day, seven days a week, 365 days a year), the notification must be no later than two hours before the designated starting time for each day of absence. When hospitalization or institutionalization is required, employees must notify their administrative authority upon admission, when possible, and upon discharge.
16. In case of absences of five or more consecutive work days, employees must provide a statement from a licensed health care professional indicating the necessity of the absence, dates of absence and estimated date of return to work. See Human Resources Policy 21-21.
17. Failure to notify the administrative authority within the time periods specified in this policy may result in an unauthorized absence without pay subjecting the employee to disciplinary action up to and including termination of employment.
18. Employees failing to comply with the requirements of this policy will not be paid, and may be subject to disciplinary action up to and including termination of employment.
19. Employees absent from work without notification and authorization for three or more consecutive work days may be subject to disciplinary action up to and including termination of employment.

Reporting Requirements

20. For non-exempt employees, sick leave (time) is accrued based on hours submitted via the approved university timekeeping system for hourly-paid employees. For exempt employees, sick leave (time) is automatically accrued while in active pay status or when an employee is on leave with full or partial pay.
21. For employees re-appointed or re-instated to the university, the Human Resources Department will adjust the sick leave (time) balances to reflect the previous unused balance, if appropriate.

22. Employees must complete and submit the appropriate Time Off From Work Form or other form (electronic or otherwise) as designated by their organizational unit to their administrative authority for approval as soon as possible.
23. COM dually compensated employees eligible to receive a UCP Short Term Disability (STD) benefit are required to advise UC Benefits Department prior to the first day of paid absence (sick pay) in order to gain access to vacation pay following termination of STD benefit.